

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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SUZZANE JIMENEZ-JENKINS,

Plaintiff,

-against-

**FIRST AMENDED
COMPLAINT**

THE CITY OF NEW YORK, POLICE OFFICER DAVID
GRIECO, tax # 940216, POLICE OFFICER ROBERT
MAYER, shield # 18638, SERGEANT FLORENCIO
ARQUER, tax # 915250, POLICE OFFICERS JOHN
DOES 1-2,

CV 12 0002 (JBW) (SMG)

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. Plaintiff brings this civil rights action against the City of New York and approximately five New York City Police Officers of the 75th Precinct alleging that, on June 9, 2011, in Brooklyn, defendants violated her rights under 42 U.S.C. § 1983, the Fourth Amendment to the United States Constitution and New York state law by entering and searching her home without a warrant, consent or exigent circumstances and falsely arresting her. The District Attorney's Office declined to prosecute plaintiff and she was released on June 10, 2011. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth Amendment to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide her New York state law claims of trespass, assault, battery and false arrest which form part of the same case and controversy as her federal claims under Article III of the United States Constitution.

4. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c) because a substantial part of the events giving rise to plaintiff's claims occurred in this District and because some or all of the defendants reside in this District.

JURY TRIAL

5. Pursuant to Fed. R. Civ. P. 38, plaintiff demands a jury trial.

NOTICE OF CLAIM

6. Because plaintiff's state law claims are brought only against the individual defendant police officers and allege intentional conduct, no notice of claim is required. In suits against municipal or county employees, as opposed to suits against municipalities or counties themselves, "service of the notice of claim upon the public corporation shall be required only if the corporation has a statutory obligation to indemnify such person under this chapter or any other provision of law." N.Y. Gen. Mun. Law § 50-e(1)(b). Although a municipality is required to "indemnify and save harmless its employees in the amount of any judgment obtained against such employees in any state or federal court, ... the duty to indemnify and save harmless ... shall not arise where the injury or damage resulted from intentional wrongdoing or recklessness on the part of the employee." N.Y. Gen. Mun. L. § 50-k(3).

PARTIES

7. Plaintiff is a United States citizen who resides in Brooklyn.

8. The City of New York is a municipal corporation organized under the laws of the State of New York

9. The individual defendants are members of the New York City Police Department (“NYPD”). The defendants were acting under color of state law and their capacities as members of the NYPD at all relevant times. The defendants are sued their individual capacities.

STATEMENT OF FACTS

10. In 2009, plaintiff’s husband, Sabin Jimenez, rented a storage unit in his name only at a storage facility located on Flatlands Avenue in Brooklyn.

11. Plaintiff had never been inside the storage unit, was unaware of its contents and the unit was not in her name.

12. On June 9, 2011, the manager of the storage facility allegedly found two firearms and ammunition in Sabin’s unit, contacted the police and gave the police Sabin’s name and address.

13. On June 9, 2011, Officer David Grieco, Officer Robert Mayer, Sergeant Florencio Arquer and other unidentified officers (“defendants”) went to plaintiff’s and Sabin’s home located at 760 Eldert Lane, apartment # 14R, in Brooklyn.

14. The defendants knocked on the door and, when plaintiff opened it, a black officer pushed plaintiff to the side and all of the defendants entered and searched plaintiff’s home for approximately two hours without a warrant, consent or exigent circumstances.

15. The defendants did not find anything illegal in the apartment but nevertheless arrested plaintiff in front of her children and took her to the 75th Precinct.

16. Sabin hired criminal defense attorney Jay Schwitzmann of Brooklyn who spoke with Officer Grieco and Sergeant Arquer over the telephone. Schwitzmann was told that plaintiff would be released without charges if Sabin turned himself in.

17. Schwitzmann did not trust the defendants. If the defendants were willing to let plaintiff go, it meant that the defendants knew they had no case against plaintiff and that it was improper for them to make her release conditional.

18. Schwitzmann was unable to surrender Sabin because the defendants would likely renege on their promise and put both plaintiff and Sabin through the system. In such a situation, there would be no one who could go to the bank and obtain bail money for both plaintiff and Sabin. Thus, Sabin had to remain at liberty until plaintiff was released by the defendants from the precinct or, if she were put through the system, after he posted bail for her.

19. Defendants released plaintiff from the 75th Precinct more than 24 hours after her arrest either because the District Attorney's Office declined prosecution.

20. While plaintiff was in the precinct, the defendants did not provide her with food or water. At one point, plaintiff's sister brought food to the precinct for plaintiff and one or more of the defendants ate half of the meal.

21. After plaintiff was released, Sabin turned himself in and the charge that the defendants filed against him was eventually dismissed.

22. Plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered an unlawful detention, a loss of liberty, emotional distress, fear, anxiety, embarrassment and humiliation.

FIRST CLAIM

(UNLAWFUL ENTRY AND SEARCH OF HOME)

23. Plaintiff repeats the foregoing allegations.

24. Defendants entered and searched plaintiff's home for approximately two hours without a warrant, consent or exigent circumstances.

25. Accordingly, the defendants are liable to plaintiff under the Fourth Amendment for unlawfully entering and searching her home.

SECOND CLAIM

(FALSE ARREST)

26. Plaintiff repeats the foregoing allegations.

27. At all relevant times, plaintiff did not commit a crime or violation.

28. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent her false arrest when they entered her home.

29. Accordingly, the defendants are liable to plaintiff under the Fourth Amendment for false arrest.

THIRD CLAIM

(FAILURE TO INTERVENE)

30. Plaintiff repeats the foregoing allegations.

31. Defendants had a reasonable opportunity to prevent the violations of plaintiff's constitutional rights, but they failed to intervene.

32. Accordingly, the defendants are liable to plaintiff failing to intervene to prevent the violation of plaintiff's constitutional rights.

FOURTH CLAIM

(*MONELL CLAIM AGAINST THE CITY OF NEW YORK*)

33. Plaintiff repeats the foregoing allegations.

34. The City of New York is a “person” within the meaning of 42 U.S.C. § 1983.

35. The City of New York, through a policy, practice or custom, directly caused the constitutional violations suffered by plaintiff.

36. Upon information and belief, the City of New York, at all relevant times, was aware that the defendants and other members of the NYPD are unfit officers who have previously committed acts similar to those alleged herein, have a propensity for unconstitutional conduct and/or have been inadequately trained.

37. Numerous members of the NYPD have been arrested and convicted of such crimes as planting evidence on suspects, falsifying police reports, corruption, theft, selling narcotics, fixing tickets, driving under the influence of alcohol, vehicular homicide, assault and domestic violence.

38. Former NYPD Commissioner Bernard Kerik was convicted of corruption-related crimes in federal and state court and served time in federal prison.

39. In 2011, former NYPD narcotics officer Jerry Bowens was convicted of murder and attempted murder while under indictment for corruption.

40. In October 2011, former NYPD narcotics officer Jason Arbeeney was convicted in New York Supreme Court, Kings County, of planting drugs on two individuals and falsifying arrest reports. Before issuing a verdict of guilty, the judge scolded the NYPD for what he described as a “widespread culture of corruption endemic in its drug units.” The judge further

stated that the testimony demonstrated that the NYPD narcotics divisions maintain a “cowboy culture” and that he was “shocked, not only by the seeming pervasive scope of misconduct but even more distressingly by the seeming casualness by which such conduct is employed.”

41. In *Colon v. City of New York*, Nos. 09 CV 8, 09 CV 9 (JBW), 2009 WL 4263362 (E.D.N.Y. November 25, 2009), the federal court stated that an “[in]formal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department.”

42. Despite the above, the City exercised deliberate indifference by failing to take remedial action. The City failed to properly train, retrain, supervise, discipline and monitor the defendants and other officers like them.

43. The City’s failure to act resulted in the violation of plaintiff’s constitutional rights as described herein.

FIFTH CLAIM

(ASSAULT)

44. Plaintiff repeats the foregoing allegations.

45. Defendants’ use of force upon plaintiff by pushing her to the side so they could illegally enter her home placed her in fear of imminent harmful and offensive physical contacts which injured her.

46. Accordingly, the individual defendants are liable to plaintiff under New York state law for assault.

SIXTH CLAIM

(BATTERY)

47. Plaintiff repeats the foregoing allegations.

48. Defendants' use of force upon plaintiff by pushing her to the side so they could illegally enter her home was an offensive and nonconsensual physical contact which injured her.

49. Accordingly, the individual defendants are liable to plaintiff under New York state law for battery.

SEVENTH CLAIM

(TRESPASS)

50. Plaintiff repeats the foregoing allegations.

51. Defendants entered and searched plaintiff's home for approximately two hours without a warrant, consent or exigent circumstances.

52. Accordingly, the individual defendants are liable to plaintiff under New York State law for trespass.

EIGHTH CLAIM

(FALSE ARREST UNDER STATE LAW)

53. Plaintiff repeats the foregoing allegations.

54. At all relevant times, plaintiff did not commit a crime or violation.

55. Despite plaintiff's innocence, the defendants arrested plaintiff or failed to intervene to prevent her false arrest when they entered her home.

56. Accordingly, the defendants are liable to plaintiff under New York state law for false arrest.

WHEREFORE, plaintiff demands the following relief jointly and severally
against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as the Court may deem just and proper.

DATED: June 19, 2012

/s/

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